Learning Activity Week 1

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LGST 312: Torts

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3/15/2025

**Legal Memorandum**

**TO:** Partner Lincoln, Esq.

**FROM:** Victoria Lee, Legal Assistant

**RE:** Practice and Procedure for Filing a Tort Cause of Action in Maryland

**DATE:** 3/15/2025

## Introduction

This memorandum aims to provide a comprehensive overview of the procedures involved in litigating a tort cause of action in Maryland by addressing the key components of the tort litigation process, the roles and functions of the parties involved, the legal basis for a tort claim, and the necessary elements of the initial filing a Complaint. Additionally, the memorandum will explain the burden of proof standard in Maryland tort cases, compare it with the standard used in criminal proceedings, and outline the procedural steps involved, such as responses, defenses, and discovery. Finally, it will highlight important statutory deadlines that must be observed during the litigation process. An example case will be provided to see how this is applicable to the memorandum. Therefore, this memorandum should assist Lucy Lincoln as she reacquaints herself with Maryland's tort litigation process for causes of action.

## Part I.

1. In a tort lawsuit, there are two primary parties involved: plaintiff and defendant. The plaintiff is the individual or entity that initiates the lawsuit by filing a complaint in court. The plaintiff alleges that they have suffered harm due to the wrongful actions (torts) of the defendant. The plaintiff's goal is to seek a remedy, often in the form of monetary damages, for the harm they have suffered. The defendant is the individual or entity against whom the lawsuit is filed. The defendant is accused of committing a tort such as

negligence, assault, battery, or trespass that caused harm to the plaintiff. In a tort case, the defendant can either admit to the wrongdoings or deny the allegations. If the defendant denies the claims, they will be required to defend themselves in court. For instance, in a negligence case of *Schultz v. Bank of Am., N.A.*, 413 Md. 15, 990 A.2d 1078 (2010), the plaintiff is Schultz, and the defendant is Bank of America, where Schultz is filing an action claim against the defendant to seek a remedy due to the harm that he has suffered by the Bank of America.

2. A legal "cause of action" refers to the legal grounds or an outline for a lawsuit, typically arising from a wrongful act or tortious conduct that causes injury to another party. In tort law, the plaintiff must prove certain "elements" of a tort cause of action to succeed in their claim such as a legal duty, breach of that duty, causation, and harm. In Maryland, a plaintiff may allege multiple causes of action in the same Complaint. In real life, the common tort causes of action include negligence, battery, assault, false imprisonment, and fraud. For example, a plaintiff may claim both negligence and battery if the facts support claims of both a breach of duty (negligence) and intentional harm (battery). In some cases, plaintiffs could also plead alternative causes of action, especially when the case involves multiple legal theories or hypotheses that could apply based on the facts of the case. For instance, in *Schultz v. Bank of Am., N.A.*, 413 Md. 15, 990 A.2d 1078 (2010), the plaintiff, Schultz, sued the bank for negligence, claiming that the bank's failure to properly manage his financial accounts caused him harm. The issue is whether the bank was negligent in handling Schultz's financial affairs, resulting in financial harm to him. In Maryland, to prove negligence in a tort case, the plaintiff must show that the defendant owed a duty of care, breached that duty, caused harm through the breach, and resulted in

damages. In this case, Schultz claimed that the bank owed him a duty to safeguard his accounts, breached that duty by not taking proper precautions, and caused him financial loss. Schultz's legal claim was negligence, arguing that the bank failed to act responsibly, which directly led to his financial damage. Therefore, this case example illustrates a tort cause of action in Maryland because Schultz successfully applied the legal elements of negligence—duty, breach, causation, and damages—to his claim and shows how a plaintiff can be allowed to allege multiple causes of action such as negligence and fraud.

3. The Complaint is the document that initiates the lawsuit and sets forth the plaintiff's allegations. There should be five specific pieces of information to be included in the Complaint. Firstly, it must include the names of the parties, clearly identifying the plaintiff(s) and defendant(s). Secondly, it must include jurisdiction and venue, explaining why the Maryland court has jurisdiction over the case and why the venue is appropriate. Thirdly, it must have the cause(s) of action, specifying the particular torts the plaintiff is alleging such as negligence, assault, and along with the necessary elements that constitute the cause of action. For instance, in the case of negligence, the complaint should show: the duty owed by the defendant to the plaintiff; breach of that duty; Causation—the defendant's breach caused the plaintiff's injury; Injury—the plaintiff suffered actual harm due to the breach. Fourthly, it must include the factual allegations, which are a detailed description of the events leading to the injury, explaining how the defendant's actions led to the plaintiff's harm. Fifthly, it must include a request for relief, which is specifying what type of relief the plaintiff is seeking, typically monetary damages, but could also include injunctive relief or other remedies. After all is filled out, the Complaint must be filed within the applicable statute of limitations for the type of tort being alleged. In most

torts this would be about 3 years, but one year for assault or defamation claims. A great example of this is in *Schultz v. Bank of Am., N.A.*, 413 Md. 15, 990 A.2d 1078 (2010), Schultz filed a Complaint to begin the lawsuit, and the document included important details: the names of both the plaintiff (Schultz) and the defendant (Bank of America), the court's jurisdiction, and the venue. In this case, it is evident that Schultz's Complaint must explain the negligence legal claims, showing that the bank had a responsibility to protect Schultz's financial information, failed to do so, and caused him harm. Finally, Schultz's Complaint would include a request for relief, asking for compensation to cover damages like lost money, and that the lawsuit must be filed within the statute of limitations, which is three years for a negligence case.

4. In a tort case, the "burden of proof" lies with the plaintiff and the standard of proof that the plaintiff must meet is the "preponderance of the evidence," meaning the plaintiff must prove that their claim or argument is true than the defendant's argument with sufficient evidence. In other words, the plaintiff needs to show that the defendant is more likely than not to have caused the harm alleged. This is a lower standard than the "beyond a reasonable doubt" standard used in criminal cases. In criminal cases, the government must prove the defendant's guilt beyond a reasonable doubt, which is a much higher standard because the defendant's liberty is at stake. The jury must be highly certain that the defendant committed the crime and this may be difficult to achieve than proving a preponderance of the evidence in civil tort cases. To apply this concept in *Schultz v. Bank of Am., N.A.*, 413 Md. 15, 990 A.2d 1078 (2010), Schultz would have the "burden of proof," meaning Schultz must show with sufficient evidence that his argument is true. In this example, this is the "preponderance of the evidence" standard, which is mostly

demonstrated compared to the “beyond a reasonable doubt” standard used in criminal trials. In other words, Schultz needs to prove that there is a high likelihood that Bank of America’s negligence led to his financial loss than not with sufficient evidence. For this case, this is a lower standard than what the prosecution must prove in a criminal case, making it likely that Schultz may succeed in a civil case.

5. There are other procedural steps and responses in tort litigation. Firstly, the defendant can respond to the complaint with an “answer,” which is after the plaintiff files the Complaint and can either admit or deny the allegations and may also assert affirmative defenses, or rebuttal defenses to challenge the plaintiff’s evidence or disprove an element of the tort. Secondly, is the “motion to dismiss” where a defendant can file a motion to dismiss the Complaint if the plaintiff’s claim is legally insufficient with proof. If granted, this can terminate the case early. Thirdly, is the discovery step, which is a formal process of exchanging information between the parties. It may involve written interrogatories, depositions, requests for documents, and other methods to gather evidence to support each side’s case. Fifthly, are the affirmative defenses, where in addition to denying the allegations, the defendant may raise affirmative defenses. These defenses could include consent, self-defense, or assumption of the risk, which may justify the defendant’s actions even if the plaintiff's allegations are true. Specifically, affirmative defenses must be specifically pled by the defendant in their answer. For example, in a case of battery, the defendant might argue that the plaintiff consented to the conduct. Sixthly, there is the rebuttal defense where the defendant may also attempt to refute or undermine the plaintiff's case, offering evidence to disprove the plaintiff's claims. Lastly, is the trial where if no settlement is reached, the case proceeds to trial, where a judge or jury

determines the outcome. A great example demonstrating this is in *Schultz v. Bank of Am., N.A.*, 413 Md. 15, 990 A.2d 1078 (2010), after Schultz files the Complaint, Bank of America can respond in several ways as mentioned previously. First, they can file an answer where the bank either agrees or denies the allegations. Then, the bank could also argue that the lawsuit should be dismissed by filing a motion to dismiss, if it believes the claim is legally insufficient. Secondly, the discovery phase in this case is where both parties exchange evidence, such as documents, emails, and other information that supports their cases. The defendant may also raise affirmative defenses, like arguing that Schultz consented to the bank's actions or assumed the risk of losing money when he agreed to certain terms. If no settlement happens, the case will go to trial, where a judge or jury will decide the outcome based on the evidence presented.

6. In Maryland tort actions must be filed within the statutory deadline or the "statute of limitations" of the date when the harm "accrues." This law sets a time limit for bringing a tort claim and in Maryland, the general statute of limitations for personal injury claims is three years from the date of the injury, meaning the plaintiff must file their Complaint within three years of when the harm occurred or was discovered. For specific claims such as assault, defamation, slander, or libel, the statute of limitations may be one year. In some cases, the statute of limitations may be tolled (paused) due to specific circumstances, such as when the plaintiff is a minor or incapacitated. These deadlines are critical, as failing to file within the designated time frame beyond the statute of limitations may result in losing the right to seek compensation and bar the plaintiff from pursuing a claim. In *Schultz v. Bank of Am., N.A.*, 413 Md. 15, 990 A.2d 1078 (2010), the statute of limitations is crucial for determining whether Schultz is barred from filing the

lawsuit. Since this case takes place in Maryland, under Md. Code Ann., Cts. & Jud. Proc. § 5-101 (West, Westlaw through all legislation from the 2024 Regular Session of the General Assembly), this statute defines the statute of limitations for civil actions in Maryland and that an individual or entity must file a civil lawsuit within three years from the date when the harm or injury occurred, unless a different law specifies a shorter time frame for specific types of claims. If Schultz is claiming that the Bank's actions caused him harm due to negligence, then he must file the lawsuit within three years from when the harm occurred or when he discovered it. If Schultz waits too long and the three-year period passes without filing the lawsuit, Schultz will lose his right to sue under the general statute of limitations even if the Bank was a fault. However, if the case involved a different type of claim, like assault or defamation, the statute of limitations might be only one year and if the plaintiff is a minor or unable to file, this period may be paused.

**Conclusion**

In conclusion, litigating a tort case in Maryland involves several key steps, starting with the filing of the Complaint, followed by various procedural responses such as the defendant's Answer and possible motions to dismiss. The plaintiff must meet the burden of proving their case by the preponderance of the evidence and may include multiple causes of action. The litigation process includes discovery, affirmative defenses, and potential rebuttal defenses. Additionally, the plaintiff must consider the statute of limitations to file a lawsuit and that in most personal injury cases involving negligence, the lawsuit must be filed three years from the date of the injury. Furthermore, using the *Schultz v. Bank of Am., N.A.* case and the Md. Code Ann., Cts. & Jud. Proc. § 5-101, demonstrates these concepts and will guide Lucy Lincoln to make informed decisions when comprehending the process of litigating a tort cause of action in Maryland.

Therefore, this memorandum should demonstrate the definitions of the process of litigating a tort cause of action in Maryland, apply a case and statue example to it, and guide Lucy Lincoln to prepare for the tort law litigation process.

## References

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